

(S E R V E D)
(DECEMBER 15, 1989)
(FEDERAL MARITIME COMMISSION)

FEDERAL MARITIME COMMISSION

DOCKET NO. 89-26

GOVERNMENT OF THE TERRITORY OF GUAM

v.

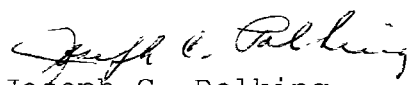
SEA-LAND SERVICE, INC. AND AMERICAN PRESIDENT LINES, LTD.

NOTICE OF FILING OF COMPLAINT AND ASSIGNMENT

Notice is given that a complaint filed by the Government of the Territory of Guam ("Complainant") against Sea-Land Service, Inc. and American President Lines, Ltd. (hereinafter referred to collectively as "Respondents") was served December 15, 1989. Complainant alleges that Respondents engaged in violations of sections 14 (Fourth), 16, 17, and 18(a) of the Shipping Act, 1916, U.S.C. app. §§ 812, 815, 816 and 817, and sections 1, 2 and 4 of the Intercoastal Shipping Act, 1933, 46 U.S.C. app. §§ 843, 844, and 845, by charging unjust and unreasonable rates for the transportation of cargo between ports in the United States and Guam, varying rates and charges for similarly situated shippers and commodities and thus causing preferences to certain shippers and commodities and prejudice to others, charging unjustly and unreasonably for demurrage charges assessed at the port of Guam, assessing demurrage charges and engaging in practices resulting in preferences to certain shippers and commodities and prejudice

to others, and overcharging Complainant through unjust and unreasonable rate increases. In addition, Complainant charges respondent Sea-Land Service, Inc. with operating as an untariffed common carrier, charging unjust and unreasonable rates and assessing and collecting unjust and unreasonable charges for service from Hawaii to Guam and between the U.S. west coast and Guam, and varying untariffed charges for similarly situated shippers and commodities resulting in preferences to certain shippers and commodities and prejudice to others in the Hawaii-Guam and U.S. west coast-Guam trades.

This proceeding has been assigned to Administrative Law Judge Joseph N. Ingolia ("Presiding Officer"). Hearing in this matter, if any is held, shall commence within the time limitations prescribed in 46 CFR 502.61. The hearing shall include oral testimony and cross-examination in the discretion of the Presiding Officer only upon proper showing that there are genuine issues of material fact that cannot be resolved on the basis of sworn statements, affidavits, depositions, or other documents or that the nature of the matter in issue is such that an oral hearing and cross-examination are necessary for the development of an adequate record. Pursuant to the further terms of 46 CFR 502.61, the initial decision of the Presiding Officer in this proceeding shall be issued by December 17, 1990, and the final decision of the Commission shall be issued by April 17, 1991.


Joseph C. Polking
Secretary

Title: Port of Oakland Terminal Agreement.**Parties:**

Port of Oakland
Mitsui OSK Lines, Ltd.
Nippon Liner System (North America, Inc.).

Synopsis: The Agreement amends the basic agreement to provide that if 500 export automobiles are handled on the terminal premises in a twelve month period, for the purposes of the TEU schedule in paragraph 4 of the basic agreement, two TEUs will be counted for every three automobiles loaded to 40 foot containers.

Agreement No.: 224-200309.

Title: South Carolina State Ports Agreement.**Parties:**

South Carolina State Ports Authority (Port)
Associated Container Transportation (USA)(ACT)
Columbus Line, Inc. (Columbus).

Synopsis: The Agreement provides for ACT and Columbus to use 8 acres (4 acres each) of North Charleston Terminal for their container terminal operations. It also provides for a guaranteed minimum of 100,000 short tons of container cargo and discount wharfage for accumulated tonnage. This Agreement shall terminate on September 30, 1991.

Agreement No.: 224-200310.

Title: Puerto Rico Ports Authority Terminal Agreement.**Parties:**

Puerto Rico Ports Authority
Antilles Shipping Corporation.

Synopsis: The Agreement provides for the three year lease and preferential use of terminal facilities at Pier 8, San Juan, Puerto Rico to be used for the berthing and loading/discharging of vessels, handling of cargo and passengers, and temporary storage of cargo.

Agreement No.: 224-200311.

Title: South Carolina State Ports Authority Terminal Agreement.**Parties:**

South Carolina State Ports Authority
Lykes Bros. Steamship Co., Inc. (Lykes).

Synopsis: The Agreement provides Lykes with tariff discounts for wharfage and certain container/chassis terminal services. Lykes guarantees 50,000 short tons of cargo throughput per year. The Agreement's term is for three years.

Agreement No.: 224-200308-001.

Title: Strachan Shipping Company Terminal Handling Agreement.**Parties:**

Strachan Shipping Company (Strachan)
South Atlantic Cargo Shipping N.V. (SACS).

Synopsis: The Agreement amends the basic agreement to add rates for certain specified cargoes handled at Port Everglades.

Agreement No.: 224-200052-004.

Title: Tampa Port Authority Terminal Agreement.**Parties:**

Tampa Port Authority Terminal Agreement
Bay Terminal & Stevedoring Co., Inc.

Synopsis: The Agreement extends the term of the basic lease agreement on a month-to-month basis for a maximum of three months from January 1, 1990, through March 31, 1990.

By Order of the Federal Maritime Commission.

Dated: December 15, 1989.

Joseph C. Polking,

Secretary.

[FR Doc. 89-29644 Filed 12-20-89; 8:45 am]

BILLING CODE 6730-01-M

[Docket No. 89-26]

Government of the Territory of Guam v. Sea-Land Service, Inc. and American President Lines, Ltd.; Filing of Complaint and Assignment

Notice is given that a complaint filed by the Government of the Territory of Guam ("Complainant") against Sea-Land Service, Inc. and American President Lines, Ltd. (hereinafter referred to collectively as "Respondents") was served December 15, 1989. Complainant alleges that Respondents engaged in violations of sections 14 (Fourth), 16, 17, and 18(a) of the Shipping Act, 1916, U.S.C. app. 812, 815, 816 and 817, and sections 1, 2 and 4 of the Intercoastal Shipping Act, 1933, 46 U.S.C. app. 843, 844, and 845, by charging unjust and unreasonable rates for the transportation of cargo between ports in the United States and Guam, varying rates and charges for similarly situated shippers and commodities and thus causing preferences to certain shippers and commodities and prejudice to others, charging unjustly and unreasonably for demurrage charges assessed at the port of Guam, assessing demurrage charges and engaging in practices resulting in preferences to certain shippers and commodities and prejudice to others, and overcharging Complainant through unjust and unreasonable rate increases. In addition, Complainant charges respondent Sea-Land Service, Inc. with operating as an untariffed common carrier, charging

unjust and unreasonable rates and assessing and collecting unjust and unreasonable charges for service from Hawaii to Guam and between the U.S. west coast and Guam, and varying untariffed charges for similarly situated shippers and commodities resulting in preferences to certain shippers and commodities and prejudice to others in the Hawaii-Guam and U.S. west coast-Guam trades.

This proceeding has been assigned to Administrative Law Judge Joseph N. Ingolia ("Presiding Officer"). Hearing in this matter, if any is held, shall commence within the time limitations prescribed in 46 CFR 502.61. The hearing shall include oral testimony and cross-examination in the discretion of the Presiding Officer only, upon proper showing that there are genuine issues of material fact that cannot be resolved on the basis of sworn statements, affidavits, depositions, or other documents or that the nature of the matter in issue is such that an oral hearing and cross-examination are necessary for the development of an adequate record. Pursuant to the further terms of 46 CFR 502.61, the initial decision of the Presiding Officer in this proceeding shall be issued by December 17, 1990, and the final decision of the Commission shall be issued by April 17, 1991.

Joseph C. Polking,

Secretary.

[FR Doc. 89-29610 Filed 12-20-89; 8:45 am]

BILLING CODE 6730-01-M

FEDERAL RESERVE SYSTEM**Agency Forms under Review**

December 13, 1989.

Background

On June 15, 1984, the Office of Management and Budget (OMB) delegated to the Board of Governors of the Federal Reserve System (Board) its approval authority under the Paperwork Reduction Act of 1980, as per 5 CFR § 1320.9, "to approve of and assign OMB control numbers to collection of information requests and requirements conducted or sponsored by the Board under conditions set forth in 5 C.F.R. § 1320.9." Board-approved collection of information will be incorporated into the official OMB inventory of currently approved collections of information. A copy of the SF 83 and supporting statement and the approved collection of information instrument(s) will be placed into OMB's public docket files. The following report, which is being